

Cross-defendants support their claim of unpaid vendors by attaching a judgment and abstract of judgment against GK Orchards. The connection between the judgment and vendor work on the property is assumed, not demonstrated. Cross-complainants alleged vandalism has not been evidenced, and cross-complainants similarly accuse cross-defendants of acts of interference. The declaration of Tejinder Pal Sandhu further provides evidence of his property tax payments. This in itself does not demonstrate total taxes owed and paid/unpaid by each party, i.e. whether he is paying his full share or that cross-complainants are not paying at all. Cross-defendants also include a demand letter for collection of an outstanding PG&E bill. The demand is made as to Tejinder Pal Sandhu only. Mr. Sandhu attests that "defendants refuse to pay any share of that even though they are the ones using the water." (Sandhu Decl., ¶ 16.) This is not evidence of cross-complainants failing an obligation, as it appears the debt belongs to Mr. Sandhu and no evidence obliging the cross-complainants to assist in payment is demonstrated.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Issued By: KCK on 09/08/26
(Judge's initials) (Date)

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Tentative Ruling

Re: ***Claudia Dysard v. Kenneth Ikemiya, M.D.***
Superior Court Case No. 25CECG00485

Hearing Date: September 9, 2026 (Dept. 501)

Motion: By Plaintiff for Leave to File a First Amended Complaint

Tentative Ruling:

To grant plaintiff's motion for leave to file a first amended complaint. (Code Civ. Proc., § 473.) Plaintiff shall file the proposed first amended complaint within 10 days of the date of service of this order. All new allegations shall be in **boldface**.

Explanation:

Motions for leave to amend the pleadings are directed to the sound discretion of the court. "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading" (Code Civ. Proc. § 473, subd. (a)(1); see also Code Civ. Proc. § 576.) Judicial policy favors resolution of cases on the merits, and thus the court's discretion as to allowing amendments will usually be exercised in favor of permitting amendments. This policy is so strong, that denial of a request to amend is rarely justified, particularly where "the motion to amend is timely made and the granting of the motion will not prejudice the opposing party." (*Morgan v. Superior Court* (1959) 172 Cal.App.2d 527, 530.) The validity of the proposed amended pleading is not considered in deciding whether to grant leave to amend. (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048.) Absent prejudice, it is an abuse of discretion to deny leave to amend. (*Higgins v. DeFaro* (1981) 123 Cal.App.3d 558, 564-65.)

Here, plaintiff Claudia Dysard ("Plaintiff") seeks leave to file a first amended complaint to assert additional factual allegations against defendants Saint Agnes Medical Center ("Saint Agnes") and Kenneth A. Ikemiya, M.D. ("Dr. Ikemiya"). The original Complaint alleges that Plaintiff's injuries were the result of "improper placement of the arterial line during surgery" in her left arm. Plaintiff now seeks to include allegations that Dr. Ikemiya had placed "a left subclavian central venous catheter" in the left side of her chest, and that one or both of the vascular access devices caused her injuries.

Defendants each oppose Plaintiff's motion. Dr. Ikemiya and Saint Agnes submit that Plaintiff has not been diligent with the knowable allegations to such a degree as to constitute unwarranted delay. It is also argued that Plaintiff's counsel failed to include the circumstances of discovering the alleged facts pursuant to Rules of Court, rule 3.1324(b). Defendants argue that Plaintiff had knowledge of the proposed allegations because Plaintiff received the medical records in December 2024, over a month before filing the Complaint. Also, defendants argue Plaintiff's written discovery response served in June 2025 and deposition in October 2025 indicated Plaintiff had knowledge of the placement of the left subclavian central venous catheter. However, Plaintiff's counsel's declaration states that although discovery was received and reviewed, it was not

